

File No.: EXP202311351

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by the CANARY HEALTH SERVICE (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 19, 2024, and based on the following

FACTS

FIRST: On July 27, 2023, a complaint was received by this Agency filed by Mr. A.A.A. (the complainant) against the CANARY HEALTH SERVICE (the respondent) for not having duly attended to his right of erasure.

The complainant stated that, through a certified letter dated June 16, 2023, he requested the erasure of a healthcare episode from over 22 years ago that is retained in his medical history, without receiving a response.

SECOND: In accordance with the preliminary mechanism for the admission of complaints filed with the AEPD, as provided in Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), which consists of forwarding them to the data protection officers designated by the controllers or processors, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, the complaint was forwarded to the CANARY HEALTH SERVICE for analysis and response within one month, with no record of any response having been submitted.

THIRD: On October 25, 2023, in accordance with Article 65.5 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On March 19, 2024, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to uphold the complaint. The resolution was notified to the appellant on March 19, 2024, as evidenced in the file.

FIFTH: On April 19, 2024, the appellant filed a voluntary recourse for reconsideration through the AEPD's Electronic Registry, against the resolution issued in file EXP202311351, expressing his disagreement with the contested resolution, stating that "(...) The Agency resolves the matter on March 19, 2024, without considering that the right has been attended to during the course of the procedure, urging the Canary Health Service to send the complainant a certification in which the requested right is attended to or is denied with justification indicating the reasons why the request cannot be granted. (...) On April 4, with registration number SCS/40499, the actions taken were forwarded to the Spanish Agency for Data Protection, indicating that "(...) during the processing of the file, the right of erasure requested by the complainant was attended to, by sending to the lawyer of Mr. A.A.A. the resolution denying his request (No: 3872/2023 dated 11/13/2023). Attached as Doc. 1, as well as the proof of delivery via postal service dated 11/17/2023, Doc. 2." Attached as Doc. 4."

To the above facts, the following

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this recourse, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of the LOPDGDD.

II

Response to the allegations presented

The appellant states that in the allegations presented during the processing of the file, he had submitted the resolution denying the right requested by the complainant. In this regard, the documentation in the procedure has been re-examined, and it has been verified that the document

indicated by the appellant has been submitted.

However, said denial resolution was issued and notified to the complainant after the legally established deadline for it had elapsed.

The recourse for reconsideration filed by the appellant was forwarded to the complainant, granting him the opportunity to respond. In his response, as far as this procedure is concerned, this party states that the response was produced out of time.

III

Conclusion

As a consequence of the above, in this case, it is appropriate to uphold the present recourse for reconsideration, modifying the resolution now contested, upholding, for formal reasons, the complaint raised as the right of erasure requested was duly denied in an untimely manner, without the need for further actions.

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IV

Late Resolution

Due to operational reasons of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

In cases of dismissal due to administrative silence, the express resolution after the expiration of the term will be adopted by the Administration without any binding effect to the sense of silence, as provided in Article 24.3 of the same law.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having considered the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the appeal for reconsideration filed by the CANARY ISLANDS HEALTH SERVICE against the Resolution of this Spanish Agency for Data Protection issued on March 19, 2024, in file EXP202311351.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and the CANARY ISLANDS HEALTH SERVICE. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

185-21112023

Olga Pérez Sanjuán

Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy of the AEPD

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